# The State Of Karnataka vs No.1 Shivakumar Jain on 11 March, 2020

Spl.C.C.No.558/2018
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IN THE COURT OF THE L ADDITIONAL CITY CIVIL
& SESSIONS JUDGE, BENGALURU

Dated this the 11 th Day of March, 2020

- : PRESENT: -

SMT. SUSHEELA B.A. LL.B.
L Additional City Civil & Sessions Judge,
BENGALURU

SPECIAL C.C. No. 558/2018

COMPLAINANT The State of Karnataka,
By Puttenahalli Police Station,
Bengaluru
Public Prosecutor-Bangalore

/ VERSUS /

ACCUSED No.1 Shivakumar Jain,
S/o. Atmaram Bhauvalal, 56 years,
R/at. No.59, 10th Main, 15th Cross,
Wilson Garden,
Bengaluru-560 030.

ACCUSED No.2 Rajubai Banjara,
S/o. Gepar Ramji, 24 years,
R/at Madan Singh's House, 2nd Cross,
Near Aradhana School,
Arakere MICO Layout,
J.P. Nagar 7th Stage,
Bengaluru.

Sri.E.T.D. Advocate

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|---|---|---|
| 1 | Date of commission of offence | 01-02-2017 to 28-06-2017 |
| 2 | Date of report of occurrence | 28-06-2017 |
| 3 | Date of arrest of A-1 | |
| | Date of release of A- | ON BAIL |
| | Period undergone in custody by A-1 | |
| | Date of arrest of A-2 | 29-06-2017 |
| | Date of release of A-2 | 11-07-2017 |
| | Period undergone in custody by A-2 | 12 days |

| | | |
|---|---|---|
| 4 | Date of commencement of evidence | 20-09-2019 |
| 5 | Date of closing of evidence | 03-02-2020 |
| 6 | Name of the complainant | Seema Diwan |
| 7 | Offences complained of | Sec.370(4) r/w. 34-IPC & Sec.75, 79-J.J. Act & Sec.3, 14 C.L. Act |
| 8 | Opinion of the Judge | Accused No.1 and 2are acquitted |
| 9 | Order of Sentence | As per the final order |

J UD GM EN T

This charge sheet filed by Police Sub-Inspector of Puttenahalli Police Station-Bengaluru, against accused No.1 and 2 for the offences punishable under Section 370(4) read with 34 of I.P.C, Section 3 and 14 of Child Labour (Prohibition and Regulation) Act, 1986 and Section 75 and 79 of Juvenile Justice (Care and Protection of Children) Act, 2015.

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2. The case of the prosecution in brief, as per the prosecution papers, is stated as follows:

The accused No.1 is running a cloth shop in the name and style of J.R. Dresses at No.521, 2nd Cross, Govindappa Reddy Layout, MICO Layout, Arekere within the limits of Puttenahalli Police Station, Bengaluru. The Accused No.2 who is known to him, brought Cw.2-minor boy, his relative and son of Cw.4-Leela Devi viz., by way of human trafficking from Rajasthan and left the said boy in the Cloth shop of accused No.1 as a labour and in turn the accused No.1 extracting work from the said boy for long hours without paying salary and also given mental and physical torture while extracting work from him. On

the basis of complaint lodged by Cw.1-complainant-Seema Diwan-President of Talaash Association, the Police registered the case against the accused No.1 and 2 in Crime No.248/2017 for the offences punishable under Section 370 of I.P.C, Section 3 Child Labour (Prohibition and Regulation) Act, 1986 and Section 75 and 79 of Juvenile Justice (Care and Protection of



Children) Act, 2015.

3. The Investigating Officer has investigated the same and filed charge sheet against accused No.1 and 2 for the offences punishable under Section 370(4) read with 34 of I.P.C, Section 3 and 14 of Child Labour (Prohibition and Regulation) Act, 1986 and Section 75 and 79 of Juvenile Justice (Care and Protection of Children) Act, 2015. Thereafter, after filing the charge sheet, as usual the accused No.1 and 2 appeared before the Court. The copy of charge sheet furnished to accused No.1 and 2 as contemplated under Section 207 of Cr.P.C. Thereafter the learned advocate for accused No.1 and 2 submitted that there is no argument before framing charge and requested to frame charge. As a result the charges were framed, the contents of charge read over and explained to the accused No.1 and 2 in Kannada and they pleaded not guilty and submits crime to be tried. Thereafter the case against accused No.1 and 2 was set down for prosecution evidence.

4. The prosecution in order to establish the guilt of the

accused No.1 and 2 has examined 5 witnesses as Pw.1 to Pw.5, got marked 6 documents as Ex.P1 to Ex.P6 and closed its side evidence. In view of incriminating evidence appeared against the accused No. 1 and 2, they are examined under Section 313 of Cr.P.C., by recording their statement. The accused No.1 and 2 denied the alleged incriminating evidence appeared against them as false. Earlier to that the accused No.1 and 2 complied the provision of Section 437-A of Cr.P.C., by executing personal bond and surety bond. Thereafter arguments heard from both the sides and the matter is set down for judgment.

5. Having regard to the facts, circumstances and arguments submitted by both sides, the following points that arise for my consideration are as under:-

1.1£ÉÃ DgÉÆÃ¦ ¨ÉAUÀ¼ÀÆgÀÄ £ÀUÀgÀ ¥ÀÅmÉÖÃ£ÀºÀ½î ¥ÉÇÃ°Ã¸ï oÁuÁ ªÁå¦ÛUÉ M¼À¥ÀqÀÄ CgÀPÉgÉ ªÉÄÊPÉÆÃ¯ÉÃOmï, UÉÆÃ«AzÀ¥Àà gÉrØ ¯ÉÃOmï, 2£ÉÃ PÁæ¸ï, £ÀA 521gÀ°è eÉ.Dgï.qÉæ¸À¸ï JA§ §mÉÖ CAUÀrAiÀÄ ªÀiÁ°ÃPÀ£ÁVzÀÄÝ ¡¢££É ¥ÀjZÀAiÀÄ«zÀÝ 2£É DgÉÆÃ¦ ¡¢¢ ¸ÀA§A¢üPÀ£ÁzÀ ¸ÁQë-4 ²æÃªÀÄw °Ã¯ÁzÉÃ«gÀªÀgÀ ªÀÄUÀ ¸ÁQë-2 CdÄð£ï PÀÄªÀiÁgï C¥Áæ¥ÀÛ ªÀAiÀÄ¸ÀÌ£ÉAzÀÄ w½¢zÀÝgÀÆ ¸ÀºÀ ¨ÉÃgÉ gÁdåªÁzÀ gÁd¸ÁÜ£À¢AzÀ PÉ®¸ÀPÉÌAzÀÄ PÀgÉzÀÄPÉÆAqÀÄ §AzÀÄ 1£ÉÃ DgÉÆÃ¦AiÀÄ CAUÀrAiÀÄ°è PÉ®¸ÀPÉÌ ¸ÉÃj¹ ¨sÁgÀwÃAiÀÄ zÀAqÀ ¸ÀA»vÉ PÀ®A.370(4) fifl°°–† †‡‡.34gÀ CrAiÀÄ°è ²PÁëºÀðªÁzÀ C¥ÀgÁzÀsªÀ£ÀÄß J¸ÀVzÁÝgÀÉAzÀÄ ¥Áæ¹PÀÆåµÀ£ï ¥ÀPÀëzÀªÀg ¸ÀA±ÀAiÀiÁwÃvÀÀªÁV gÀÄdÄªÁvÀÄ ¥Àr¸ÀÄvÁÛgÉAiÉÄ?

2. ªÉÄÃ¯É ºÉÃ½zÀ ¸ÀªÀÄAiÀÄ ºÁUÀÆ ¸ÀAzÀ¨ÀsðzÀ°è 1 ªÀÄvÀÄÛ 2£ÉÃ DgÉÆÃ¦ ¡•• ¸ÀªÀ



GzÉÝÃ±À¢AzÀ 2£ÉÃ DgÉÆÃ¦ gÁd¸ÁÜ£À¢AzÀ PÀgÉvÀA¢zÀÝ C¥Áæ¥ÀÛ ªÀAiÀÄ¹ì£À ¨Á®PÀ ¸ÁQë-2 CdÄð£ï PÀÄªÀiÁgï£À£ÀÄß 1£ÉÃ DgÉÆÃ¦ ¡¢¢ §mÉÖ CAUÀrAiÀÄ°è CPÀæªÀÄªÁV PÉ®¸ÀPÉÌ ElÖÄPÉÆAqÀÄ CªÀ¤AzÀ 12 UÀAmÉVAvÀ®Æ ºÉZÀÄÑ PÁ® zÀÄr¹PÉÆAqÀÄ PÀ¤µÀ× ªÉÃvÀ£ÀªÀ£ÀÄß ¤ÃqÀzÉÃ ªÀiÁ£À¹PÀ ºÁUÀÆ zÉÊ»PÀªÁV »A¸É ¤Ãr ¨Á®PÁ«ÄðPÀ PÁAiÉÄÝ PÀ®A 3 ªÀÄvÀÄÛ 14 gÀrAiÀÄ°è ²PÁëºÀðªÁzÀ C¥ÀgÁzÀsªÀ£ÀÄß J¸ÀVzÁÝgÀÉAzÀÄ ¥Áæ¹PÀÆåµÀ£ï ¥ÀPÀëzÀªÀgÀÄ ¸ÀA±ÀAiÀiÁwÃvÀÀªÁV gÀÄdÄªÁvÀÄ ¥Àr¸ÀÄvÁÛgÉAiÉÄ?

3. ªÉÄÃ¯É ºÉÃ½zÀ ¸ÀªÀÄAiÀÄ ºÁUÀÆ ¸ÀAzÀ¨ÀsðzÀ°è 1 ªÀÄvÀÄÛ 2£ÉÃ DgÉÆÃ¦ ¡•• ¸ÀªÀiÁ£À GzÉÝÃ±À¢AzÀ 2£ÉÃ DgÉÆÃ¦ gÁd¸ÁÜ£À¢AzÀ CPÀæªÀÄªÁV PÀgÉvÀA¢zÀÝ C¥Áæ¥ÀÛ ªÀAiÀÄ¹ì£À ¨Á®PÀ ¸ÁQë-2 CdÄð£ï PÀÄªÀiÁgï£À£ÀÄß 1£ÉÃ DgÉÆÃ¦ ¡¢¢ §mÉÖ CAUÀrAiÀÄ°è PÉ®¸ÀPÉÌ £ÉÃ«Ä¹PÉÆAqÀÄ CªÀ¤AzÀ 12 UÀAmÉUÀÆ ºÉZÀÄÑ PÁ®

CªÀiÁ£À«ÃAiÀÄªÁV zÀÄr¹PÉÆAqÀÄ ªÀiÁ£À¹PÀ ºÁUÀÄ zÉÊ»PÀ »A¸É ¤Ãr PÀ®A.75gÀ ªÀÄPÀÌ¼À £ÁåAiÀÄ C¢ü ¤AiÀÄªÀÄ PÁ¬ÄÝ CrAiÀÄ°è ²PÁëºÀðªÁzÀ C¥ÀgÁzÀsªÀ£ÀÄß J¸ÀVzÁÝgÉÉAzÀÄ ¥Áæ¹PÀÆåµÀ£ï ¥ÀPÀëzÀªÀgÀÄ ¸ÀA±ÀAiÀiÁwÃvÀÀªÁV gÀÄdÄªÁvÀÄ ¥Àr¸ÀÄvÁÛgÉAiÉÄ?

4. ªÉÄÃ¯É ºÉÃ½zÀ ¸ÀªÀÄAiÀÄ ºÁUÀÆ ¸ÀAzÀ¨ÀsðzÀ°è 1 ªÀÄvÀÄÛ 2£ÉÃ DgÉÆÃ¦ i•• ¸ÀªÀiÁ£À GzÉÝÃ±À¢AzÀ 2£ÉÃ DgÉÆÃ¦ gÁd¸ÁÜ£À¢AzÀ PÀgÉvÀA¢zÀÝ C¥Áæ¥ÀÛ ªÀAiÀÄ¹ì£À ¨Á®PÀ ¸ÁQë-2 CdÄð£ï PÀÄªÀiÁgï£À£ÀÄß 1£ÉÃ DgÉÆÃ¦ i¢¢ §mÉÖ CAUÀrAiÀÄ°è CPÀæªÀÄªÁV PÉ®¸ÀPÉÌ £ÉÃ«Ä¹PÉÆAqÀÄ CªÀ¤AzÀ 12 UÀAmÉVAvÀ®Æ ºÉZÀÄÑ PÁ® zÀÄr¹PÉÆAqÀÄ PÀ¤µÀ× ªÉÃvÀ£ÀªÀ£ÀÄß ¤ÃqÀzÉÃ i¢ ‰•¾¿Ä‡‰ ‡°`¿°¾‡£†‡¾• PÀ®A.795gÀ ªÀÄPÀÌ¼À £ÁåAiÀÄ C¢ü ¤AiÀÄªÀÄ PÁ¬ÄÝ CrAiÀÄ°è ²PÁëºÀðªÁzÀ C¥ÀgÁzÀsªÀ£ÀÄß J¸ÀVzÁÝgÉÉAzÀÄ ¥Áæ¹PÀÆåµÀ£ï ¥ÀPÀëzÀªÀg ¸ÀA±ÀAiÀiÁwÃvÀÀªÁV gÀÄdÄªÁvÀÄ¥Àr¸ÀÄvÁÛgÉAiÉÄ?

5. AiÀÄÁªÀ DzÉÃ±À?

6. My findings on the above points are as under:-

Point No.1: In the Negative.

Point No.2: In the Negative.

Point No.3: In the Negative.

Point No.4: In the Negative.

Point No.5: As per the final orders for the following:

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7. Point No.1 to 4:- As these points are inter-related one, hence I have taken up together for my consideration in order to avoid repetition of reasons.

8. In order to prove the alleged offences against the accused No.1 and 2, the prosecution has examined in all 5 witnesses as Pw.1 to Pw.5, got marked 6 documents as Ex.P1 to Ex.P6 and this Court perused the same. As per the prosecution case, Pw.1 is the complainant, Pw.2 is the victim boy, Pw.3 is the mother of victim boy, Pw.4 is independent Panch witness and Pw.5 is the police office and Investigating Officer. Hence,

this Court shall proceed to see whether the available evidence of said witnesses is sufficient for establishing the alleged offences against the accused No.1 and 2.

9. In order to establish the alleged offences against accused No.1 and 2, the prosecution is required to prove that the accused No.1 is running a cloth shop in the name and style of J.R. Dresses at No.521, 2 nd Cross, Govindappa Reddy Layout,



MICO Layout, Arekere within the limits of Puttenahalli Police Station, Bengaluru. The Accused No.2 who is known to him,Cw.2-minor boy, brought his relative and son of Cw.4-Leela Devi viz., by way of human trafficking from Rajasthan and left the said boy in the Cloth shop of accused No.1 as a labour and in turn the accused No.1 extracting work from the said boy for long ours without paying salary and also given mental and physical torture while extracting work from him and thereby the accused No.1 and 2 committed offences punishable under Section 370(4) read with 34 of I.P.C, Section 3 and 14 of Child Labour (Prohibition and Regulation) Act, 1986 and Section 75 and 79 of Juvenile Justice (Care and Protection of Children) Act, 2015.

10. Before venturing into scan the available material evidence on record, it is necessary to mention the very definition of offences under Section 370(4) read with 34 of I.P.C, Section 3 and 14 of Child Labour (Prohibition and Regulation) Act, 1986 and Section 75 and 79 of Juvenile Justice (Care and Protection

of Children) Act, 2015.

Section 370(4) of I.P.C defines that:

Where the offence involves the trafficking of a minor-it shall be punishable with rigorous imprisonment which shall not be less than 10 years, but which may extend to imprisonment for life and shall also be liable to fine.

Section 3 of The Child Labour (Prohibition and Regulation) Act, 1986 defines that:

Prohibition of employment of children in any occupation and process:

(1) No child shall be employed or permitted to work in any occupation of process.

(2) Nothing in sub-section(a) shall apply where the child,-(a)helps his family or family enterprise, which is other than any hazardous occupations or process set forth in the Schedule, after his school hours or during vacations;

Section 14 of The Child Labour (Prohibition and Regulation) Act, 1986 defines that:

Penalties.-:

(1) Whoever employs any child or permits any child to work in contravention of the provisions of section 3 shall be punishable with imprisonment for a term which shall not be less than three months but which may extend to one year or with fine which shall not be less than ten thousand rupees but which may extend to twenty thousand rupees or with both..

(2)Whoever, having been convicted of an offence under section 3, commits a like offence afterwards, he shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to two years.

(3)Whoever,



(a) fails to give notice as required by section 9; or
(b) fails to maintain a register as required by section 11 or makes any false entry in any such register; or
(c) fails to display a notice containing an abstract section 3 and this section as required by section 12; or

(d)fails to comply with or contravenes any other provisions of this Act or the rules made there under,

Shall be punishable with simple imprisonment which may extend to one month of with fine which may extend to ten thousand rupees or with both.

Section 75 of J.J. Act, defines that:

Punishment for cruelty to child:-Whoever, having the actual charge of or control over, assaults, abandons, exposes or willfully neglects the child or causes or procures the child to be assaulted, abandoned, abused, exposed or neglected in a manner likely to cause such child unnecessary mental or physical suffering shall be punishable with imprisonment for a term which may extend to three years, or with fine of one lakh rupees or with both.

Section 79 of J.J. Act, defines that:

Exploitation of child employee-whoever ostensibly engages a child and keeps him in bondage for the purpose of employment or withholds his earnings or uses such earning for his own purpose shall be punishable with rigorous imprisonment for a term which may extend to five years also be liable to fine of one lakh rupees.

With these observations, now left with the available material evidence to consider whether the facts and circumstances of the case and given evidence attracts the definitions of above said sections to believe alleged offences



against accused No.1 and 2 has to be looked into or it probabalises the defense of the accused No.1 and 2.

11. By going through the evidence of Pw.1 the complainant by name Seema Diwan, she has deposed that she is the President of Talaash Association, she has not seen the accused No.1 and 2. On 28-06-2017 she has seen the victim boy working at cloth shop by name J.R. Dresses run by 1 st

accused. She has intimated the same to the police by filing complaint as per Ex.P1 and rescued the said boy from the exploitation of the accused No.1. Except that she has not stated anything against accused No.2.

12. In the cross-examination the accused No.1 and 2 tested her veracity by elicitating some commission and omission and also taken defence that the victim boy was not working as a child labour in the cloth shop of accused No.1 and he is the relative of accused No.2, due to summer vacation he came along with his relatives to see Bengaluru, since the accused No.2 known to the accused No.1, the victim boy came near the shop,



except that he has not worked as child labour as per the case of prosecution, for that she has denied the same. Since this witness is interested witness though she has supported the case of prosecution by way of giving corroborative evidence, but at the same time it has to be looked through the evidence victim boy and other independent witnesses supported the evidence of this witness and the case of prosecution to come to a conclusion of commission of offence by the accused No.1 and 2 as per the case of prospection.

13. By going through the evidence of Pw.2-Arjun Kumar- the victim boy he has deposed that he is permanent resident of Bolathra Village, Pasibadra Tahasil, Bodmaire District Rajasthan State. He is not doing any work, he is residing in his village, once he came to Bangalore to see the Bengaluru, except

that he doesn't know anything about the case. He know the accused No.1 and 2, accused No.2 is his in-law and accused No.1 is the friend of accused No.2. At no point of time he was working under accused No.1, he doesn't know anything about

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the case, the accused persons have not created any problem to him.

14. The material witness and victim boy turned hostile to the case of prosecution and the prosecution cross-examined him by suggesting that the accused No.1 has taken him as Labour to his Cloth shop and extracting work from 09.00a.m., to 09.00 p.m., causing ill-treatment both physically and mentally and also his salary is received by the accused No.2 being his in-law and he was working since from 4 months as on the date of raiding of the police, as per the complaint of complainant the President of Talash Association and he has given his statement as per Ex.P2, for that this witness denied the same. His definite answer is he has not worked under accused No.1 as child labour and the accused No.1 not exploited him and he has not given any statement as per Ex.P2. Through this witness the prosecution failed to prove alleged offences against accused No.1 and 2 beyond all reasonable doubt.

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15. By going through the evidence of Pw.3-Leela Devi- the mother of victim boy and sister of accused No.2, she has

deposed in support of evidence of Pw.2-the victim boy regarding their residence, relationship with accused No.2 and victim boy. She has also deposed that the victim boy came along with accused No.2 to see Bengaluru, during his vacation. When her son was in the shop of the friend of accused No.2, the police came and lodged this case. At no point of time her son-the victim boy worked as child labour in the cloth shop of accused No.1. The victim boy is in her village and she has not joined her son to work in the cloth shop of accused No.1. There is no problem to her son from anybody. This witness also turned hostile to the case of prosecution and the prosecution suggested each and every word of Ex.P3, for that she has denied the same and her definite answer is she has not given any statement as per Ex.P3 before police. Through the evidence of Pw.3, the prosecution failed to corroborate its case against accused No.1 and 2.



16. By going through the evidence of Pw.4-Dilip, he has deposed that he has not seen the accused No.1 and 2 earlier and for the first time he saw them today before the Court. Ex.P4(a) is his signature, but he doesn't know anything about Ex.P4. Further he has deposed that he doesn't know the contents of Ex.P4 and also he doesn't know the case of prosecution, he has not seen the cloth shop of accused No.1. Since this witness also turned hostile to the process of conducting Mahazar as per Ex.P4 on 29-06-2017 at about

09.30a.m., near the shop of accused No.1, due to engaging of child as labour in his cloth shop up to 10.30p.m, and obtained his signature there itself, for that he has denied the same. His definite stand is no such process of Mahazar conducted by the police before him. Through the evidence of this witness also the prosecution failed to prove alleged offences against accused No.1 and 2 beyond all reasonable doubt.

17. By going through the evidence of Pw.5-K. Shivalingaiah-P.S.I., he has deposed that on 28-06-2017, he



was the SHO of the station, the complainant came at about 02.00p.m, and lodged the complainant as per Ex.P1. He has verified the same and registered the case in Crime No.248/2017 under section 370 of IPC, section 3 of Child Labour Prohibition Act and Section 75 and 79 of J.J. Act, 2015 and entered the Shara and signed as per Ex.P1(b). Further he has deposed that on the basis of said complaint, he has prepared FIR as per Ex.P5 and submitted the same to the Court. Further he has deposed that on the very same day, he has recorded the statement of Cw.2, Cw.3, Cw.11 and Cw.12. Here Cw.2 is the victim boy, but he has not supported the case of prosecution and his definite answer is that he has not given any statement as per Ex.P2 and on the same day he has send the victim boy to Balakara Bala Mandira along with requisition.

18. Further Pw.5 deposed that on 29-06-2016 Pw.12 has arrested the accused No.2 produced before him at about

02.00p.m. He has arrested him and recorded his voluntary statement. Here the complainant/Pw.1 not whispered anything

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against accused No.2. In her evidence, even she has deposed that she has not seen accused No.1 and 2 earlier. The Panch witness-Pw.4 also not supported the process of conducting Mahazar by this witness. This witness also recorded the statement of Cw.4 and Cw.5, but they have not stepped into witness box to give their evidence. He has sent the police personnel for receiving of age certificate of the victim boy On 13-07-2017 he has recorded the statement of Cw.4 as per Ex.P3, but Cw.4 as Pw.3 turned hostile to the case of prosecution. He has received age certificate as per Ex.P6 and filed charge sheet against accused No1 and 2 after closing of investigation and also identified accused No.1 before Court. The accused persons tested the veracity of the evidence of this witness by eliciting some commission and omission, except denial suggestion nothing has been elicited favourable to their defense. Since the complainant not identified the accused No.1 and 2, the victim boy and his mother i.e., -Pw.2 and Pw.3 not corroborated the case of prosecution and Pw.4 turned hostile to the case of prosecution, at this stage, this Court opines the evidence of this

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witness is a formal one.

19. The oral and documentary evidence placed on record by the prosecution is insufficient to prove the alleged offences

against accused No.1 and 2 beyond all reasonable doubt. The defense of the accused No.1 and 2 and the facts and circumstances of the case including materials on record discussed above probablizes the defense of the accused No.1 and 2 rather than the case of the prosecution.

20. In view of aforesaid reasons, I hold that the evidence of Pw.1 to Pw.5 and documentary evidence as per Ex.P1 to Ex.P6, placed on record in respect of alleged offences, is insufficient to prove that the accused No.1 is running a cloth shop in the name and style of J.R. Dresses at No.521, 2 nd Cross, Govindappa Reddy Layout, MICO Layout, Arekere within the limits of Puttenahalli Police Station, Bengaluru, the Accused No.2 who is known to him, brought Cw.2-minor boy, his relative and son of Cw.4-Leela Devi viz., by way of human trafficking from Rajasthan and left the said boy in the Cloth shop of



accused No.1 as a labour and in turn the accused No.1 extracting work from the said boy for long hours without paying salary and also given mental and physical torture while extracting work from him and thereby committed offences punishable under Section 370(4) read with 34 of I.P.C, Section 3 and 14 of Child Labour (Prohibition and Regulation) Act, 1986 and Section 75 and 79 of Juvenile Justice (Care and Protection of Children) Act, 2015 beyond all reasonable doubt. Consequently, I hold Point No.1 to 4 in the "Negative".

21. Point No.5:- For the above said reasons and discussions on Point No.1 to 4, I hold that the accused No.1 and 2 are entitled for an order of acquittal. Hence, in the final result, I proceed to pass the following:

ORDER

Acting under Section 235(1) of Cr.P.C., the accused No.1 and 2 are acquitted for the offences punishable under Section 370(4) read with 34 of I.P.C, Section 3 and 14 of Child Labour (Prohibition and Regulation) Act, 1986 and Section 75 and 79 of Spl.C.C.No.558/2018 Juvenile Justice (Care and Protection of Children) Act, 2015. Their bail bonds and surety bonds stand cancelled.

(Dictated to the Judgment Writer, transcribed and typed by her. It is then corrected, signed and pronounced by me in open court on this the 11 th Day of March, 2020) (SUSHEELA) L ADDL.CITY CIVIL & SESSIONS JUDGE, BANGALORE AN NE XU RE LIST OF WITNESSES EXAMINED ON BEHALF OF PROSECUTION Pw.1 Seema Diwan Cw.1 20-09-2019 Pw.2 Arjun Kumar Cw.2 08-01-2020 Pw.3 Leela Devi Cw.4 08-01-2020 Pw.4 Dilip Cw.9 08-01-2020 Pw.5 K.Shivalingaiah Cw.13 03-02-2020 LIST OF DOCUMENTS MARKED ON BEHALF OF PROSECUTION Ex.P 1 Complaint Pw.1 20-09-2019 Ex.P 2 Statement of Pw.2 Pw.2 08-01-2020 Ex.P 3 Statement of Pw.3 Pw.3 08-01-2020 Ex.P 4 Mahazar Pw.9 08-01-2020 Spl.C.C.No.558/2018 Ex.P 5 FIR Pw.4 03-02-2020 Ex.P 6 Age estimation Pw.4 03-02-2020 certificate of Pw.2 LIST OF MATERIAL OBJECTS MARKED ON BEHALF OF PROSECUTION

-NIL-

LIST OF WITNESSES EXAMINED, DOCUMENTS MARKED & MO.S MARKED ON BEHALF OF DEFENCE

-NIL-

L ADDL.CITY CIVIL & SESSIONS JUDGE, BANGALORE